

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charis Jones	Team: Squad #03	CCRB Case #: 202102531	☒ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 04/24/2021 10:45 PM, Thursday, 05/12/2022 12:00 AM	Location of Incident: Brooklyn Bridge	18 Mo. SOL 10/24/2022	Precinct: 05		
Date/Time CV Reported Sun, 04/25/2021 6:12 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 04/25/2021 6:12 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. CPT Chase Maneri	00000	945948	NARCB BX
2. An officer			
3. LT Roberto Dominguez	01019	938384	040 PCT
4. PO Gilberto Rodriguez	31673	953331	MELD
5. PO Dennis Gannon	23133	947015	SRG 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. INS Gerard Dowling	00000	915640	SRG
2. CPT Jason Cortes	00000	933713	SRG 1
3. PO Brett Healy	22583	945809	SRG 2

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer seized an individual's property.	A . Officer(s) Unidentified
B . LT Roberto Dominguez	Force: Sergeant Roberto Dominguez used pepper spray against individuals.	B . Substantiated
C . CPT Chase Maneri	Force: Captain Chase Maneri used physical force against § 87(2)(b)	C . Substantiated
D . PO Dennis Gannon	Abuse: Police Officer Dennis Gannon refused to provide his shield number to § 87(2)(b)	D . Substantiated
E . PO Gilberto Rodriguez	Force: Police Officer Gilberto Rodriguez used physical force against § 87(2)(b)	E . Miscellaneous
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
H . CPT Chase Maneri	Untruthful Stmt.: Captain Chase Maneri provided a false official statement to the CCRB.	H . Substantiated

Case Summary

On April 25, 2021, § 87(2)(b) filed this complaint online at the CCRB's website on behalf of an unidentified individual, unidentified individuals, § 87(2)(b) and herself. This complaint was added to the Agency's sensitive case list due to media coverage of the incident.

On April 24, 2021, at approximately 10:45 p.m., § 87(2)(b) participated in a protest against police brutality on the Brooklyn Bridge. While on the bridge, an officer seized an individual's bicycle (**Allegation A: Abuse of Authority, Officer(s) Unidentified**). Sergeant Robert Dominguez, assigned to Strategic Response Group 2 (SRG 2), pepper sprayed individuals (**Allegation B: Force, Substantiated**). Captain Chase Maneri, assigned to Narcotics Borough Bronx (NARCBX), pushed § 87(2)(b) (**Allegation C: Force, Substantiated**). Police Officer Dennis Gannon, assigned to SRG 2, refused to provide his shield number to § 87(2)(b) (**Allegation D: Abuse of Authority, Substantiated**). Police Officer Gilberto Rodriguez, assigned to SRG 2, used physical force against § 87(2)(b) (**Allegation E: Force, Miscellaneous- Subject on Long Term Leave**).

§ 87(2)(g), § 87(4-b)

On May 12, 2022, Capt. Maneri provided a false official statement to the CCRB (**Allegation H: Untruthful Statement, Substantiated**)

Former investigator Noa Street-Sachs was initially assigned the case on April 26, 2021. The case was reassigned to the undersigned on August 4, 2021.

No arrests were made, nor any summons issued as a result of this incident.

The investigation obtained 89 body-worn-camera (BWC) recordings from officers that were at the protest (**Board Review 01**). Sgt. Dominguez, Police Officer Brett Healy (assigned to SRG 2), PO Gannon, and PO Rodriguez's BWC recordings most clearly captured portions of the above incident (**Board Reviews 02-05**). § 87(2)(b) provided the investigation with cellphone videos and photographs that also captured portions of the incident (**Board Reviews 06-09**).

Sgt. Dominguez has since been promoted to Lieutenant and is now assigned to the 40th Precinct.

PO Rodriguez is on extended military leave until January of 2023 and was not interviewed by the investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: An officer seized an individual's property.

§ 87(2)(b) (**Board Review 10**) testified that on April 24, 2021, she attended a protest near Foley Square in Manhattan. This protest was a weekly occurrence that took place every Saturday and this specific one was the sixteenth protest of this series. As they had done previously, the protesters walked from Foley Square to the 84th Precinct in Brooklyn, via the Brooklyn Bridge. There were approximately one hundred protesters. Once the group arrived at the 84th Precinct Stationhouse, they stood outside for approximately one hour before walking back to the Brooklyn Bridge. At the time of the incident, § 87(2)(b) was a 25-year-old white female who stood 5'5" tall, weighed 115 pounds, had shoulder length brown hair with bangs, brown eyes, and was wearing a dark grey long-

sleeved jean jacket, medium wash jeans, black ankle boots, a small army-green backpack, a black mask, and a black shirt. As the group of protesters walked back towards the Brooklyn Bridge, § 87(2)(b) observed approximately 100 officers following behind the protesters, including SRG officers on bicycles. There was also a front line of high-ranking officers who walked in front of the SRG officers. At approximately 10:45 p.m., the protesters were stopped in the middle of the Brooklyn Bridge as they walked across it. The long-range acoustic device (LRAD) was deployed, and an automatic message repeatedly ordered the protesters to get off the roadway and onto the sidewalk. § 87(2)(b) observed that there was no sidewalk on the bridge. § 87(2)(b) saw an officer speak into the LRAD and say, “You need to keep moving into Manhattan. If you do not keep moving into Manhattan, you will be charged with disorderly conduct.” § 87(2)(b) was not in the line directly in front of the officers but was a couple feet behind and to the right, facing Brooklyn. The protesters kept walking towards Manhattan. The front line of officers, which included SRG officers, moved faster than the protesters and began to yell “Move back” without giving the group time to properly retreat. § 87(2)(b) and other protesters started marching backwards so that they did not have their backs to the officers, because the officers were being aggressive. Protesters on bicycles stood between the officers and the other protesters. A male, § 87(2)(b) whom § 87(2)(b) described as a white male who stood 5’5-5’7” tall with dark brown hair wearing a yellow helmet had his bicycle seized by an unknown male officer, PO1. § 87(2)(b) declined to provide § 87(2)(b) name. § 87(2)(b) could not recall what PO1 looked like, except that he was from SRG.

All the officers interviewed denied seizing a bicycle from a protester at any point nor were they ever given instructions to do so **(Board Reviews 11-13)**.

None of the BWC footage obtained by the investigation captured officers seizing a bicycle from an individual matching the description provided by § 87(2)(b) **(Board Review 01)**.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Officer(s) Unidentified**.

Allegation (B) Force: Sergeant ROBERTO DOMINGUEZ used pepper spray against individuals.

§ 87(2)(b) **(Board Review 10)** testified that during the time she and other protesters stopped in the middle of the Brooklyn Bridge, Sgt. Dominguez, deployed his pepper spray against approximately five protesters.

Sgt. Dominguez **(Board Review 11)** testified that on the day of the incident, Lieutenant Jason Cortes (assigned to SRG 2) instructed Sgt. Dominguez and his group of officers to go to the 84th Precinct with bicycles to support the “precinct officers” with a protest that was taking place at that location. Sgt. Dominguez’s role was to trail behind the precinct officers and assist with controlling the crowd. Sgt. Dominguez stated that, if necessary, it was his role to create a perimeter around officers who were effecting arrests so that other protesters could not interfere. At approximately 9:30 p.m., Sgt. Dominguez arrived at the 84th Precinct stationhouse. Sgt. Dominguez observed approximately 100 protesters outside of the 84th Precinct stationhouse. Sgt. Dominguez could not recall how many officers were present and he did not know if officers from other commands, aside from SRG and the 84th Precinct, were present. The group of protesters eventually moved away from the 84th Precinct stationhouse and started walking towards the Brooklyn Bridge. Community Affairs officers followed directly behind the protesters, officers from the 84th Precinct followed behind the

Community Affairs officers, and the SRG officers followed behind them on their bicycles. At approximately 10:45 p.m., the protesters stopped in the middle of the bridge, which blocked the roadway. An announcement played over the LRAD repeatedly told protesters to continue walking over the bridge. The protesters refused to move. Sgt. Dominguez observed “a precinct officer,” whom he could not identify, move in to arrest a female protester. Sgt. Dominguez did not know what the female was being arrested for. As the officer attempted to handcuff the female protester, other protesters grabbed onto her waist from behind and attempted to pull her away. Sgt. Dominguez was a couple of feet behind this interaction. Sgt. Dominguez approached the officer from behind and deployed his pepper spray against an individual who was attempting to pull the protester away from the officer, a protester who stood next to the one being taken into custody who Sgt. Dominguez observed push another officer, and a third female protester who pushed Sgt. Dominguez. Sgt. Dominguez stated that he chose to deploy his pepper spray because it was less lethal than striking someone in the head, it can be effective in overcoming active resistance, he was concerned about the safety of the officer attempting to effect the arrest, and he “did not want anyone else to get hurt.” The three people that Sgt. Dominguez intended to pepper spray were a part of a larger crowd, many of whom he observed to be were also affected by the pepper spray. Approximately three or four officers were also in close proximity to the pepper spray but were not visibly affected by it. Sgt. Dominguez deployed the pepper spray approximately two times and did not issue any warnings prior to doing so. The pepper spray was effective because it allowed the officer to take the initial protester into custody and it ultimately dispersed the crowd. Sgt. Dominguez was not instructed to use his pepper spray at any point and no officer attempted to interfere with his deployment of it. Sgt. Dominguez has not received training regarding the use of pepper spray in a crowd setting.

Sgt Dominguez was shown his BWC footage, from 14:16 to 14:50, which captured Sgt. Dominguez deploying his pepper spray against an individual who had his arms extended out to his sides (**Board Reviews 11, 02**). After reviewing the footage, Sgt. Dominguez stated that this individual had been pushing officers to the side and to the front prior to him deploying the pepper spray. Sgt. Dominguez explained that an officer tried to take the same individual into custody but that the individual moved his arms away from the officer to evade arrest. Sgt. Dominguez stated that the video did not capture the fact that another protester stood behind this individual and was pulling him by the waist away from the officer. Sgt. Dominguez was shown the cellphone video [REDACTED] provided to the investigation twice, which captured Sgt. Dominguez pepper spraying approximately five people (**Board Reviews 11, 06**). After reviewing the footage, Sgt. Dominguez stated that he intended to pepper spray the three people in front of him who were actively resisting and that he had not intended to pepper spray the adjacent protesters. After reviewing the footage a second time, Sgt. Dominguez added that he pepper sprayed the individual on the far right side of the screen, who was not in the frame, and the protester on the far left because they were pushing himself and other officers. Sgt. Dominguez did not recall where on his body the protesters made physical contact. Sgt. Dominguez did not know the name of the protester that pushed him but stated that she was a white female.

Sgt. Dominguez’s BWC footage, which is approximately 01:06:02 hours in length, captures this portion of the incident from his perspective (**Board Review 02**). Beginning at 14:17, Sgt. Dominguez is depicted walking behind other SRG officers. At 14:20, a physical altercation occurs involving two SRG officers with bicycles who appear to use their bicycles to move protesters backwards. The specific actions taken by the protesters, as well as any additional actions taken by the officers, are unclear due to the orientation of Sgt. Dominguez’s camera. At 14:30, Sgt. Dominguez approaches two uniformed male officers from behind who are standing directly in front of a line of protesters. An unidentified white male protester who has blonde hair in a ponytail and is wearing a black jacket and a black mask stands to the right of the two uniformed officers with his

arms extended to his side. One of the officers in front of Sgt. Dominguez, who is wearing a black baseball cap, pushes this protester. The protester steps back briefly, and then continues to face the officers with his arms extended. At 14:36, Sgt. Dominguez puts his left hand on the shoulder of the other uniformed officer that was initially in front of him, extends his right arm and deploys pepper spray directly into the face of the protester who stood with his arms extended. At 14:39, Sgt. Dominguez pepper sprays an individual to the left of the initial protester. Sgt. Dominguez's camera faces away from the protesters for a moment and then pans back to the initial protester he pepper sprayed. Although Sgt. Dominguez's BWC does not capture him pepper spraying anyone to the right of the initial protester, a white male with platinum blonde hair wearing a black shirt standing to the left of the initial protester is depicted with his eyes closed and his face in his hands. None of the protesters are captured pushing officer, including Sgt. Dominguez, at any point.

On May 12, 2022, Capt. Maneri was interviewed by the CCRB (**Board Review 12**). Capt. Maneri testified that he observed four or five officers running backwards, away from the protesters, covering their eyes, which indicated to him that the officers had been pepper sprayed, although he did not see who deployed pepper spray. Capt. Maneri did not know if any protesters were pepper sprayed and he did not learn of pepper spray being deployed at any other point.

PO Healy's BWC, which is 01:06:02 hours in length, captured Sgt. Dominguez's use of pepper spray from a different angle (**Board Review 03**). At 14:20, a line of approximately six protesters, whose arms are interlocked, are walking backwards while facing the police. One of the protesters holds an umbrella in front of them as they walk. At 14:27, an officer grabs the umbrella from the protester who pulls it back in response. The officer reaches for this protester and pulls the individual towards him. A male protester with blonde hair in a ponytail, appears to hold onto the protester that the officer is attempting to pull. Simultaneously, an officer wearing a neon vest and holding a bicycle pushes his bicycle into the protester. At 14:32, an officer wearing a navy jacket pushes the male protester with blonde hair on the left side of the screen. The protesters continue to walk backwards while facing the police. At 14:37, the same officer in the navy jacket pushes the protester again on the left side of the screen. At 14:40, space is created between the protesters and the officers as the protesters continue to walk backwards with their arms interlocked. Officers are repeatedly ordering the protesters to move back during this time. At 14:43, Sgt. Dominguez approaches the line of protesters. The footage does not capture Sgt. Dominguez initially deploying the pepper spray because his back is facing the camera. An officer immediately turns towards PO Healy with his eyes closed. At 14:49, on the right side of the frame, Sgt. Dominguez deploys his pepper spray against the line of protesters who continue to walk backwards with their arms interlocked. Sgt. Dominguez is the only officer in front of the protesters at this point. None of the protesters are captured pushing officers at any point.

A cellphone video provided to the investigation by § 87(2)(b) which is 00:11 seconds in length, captured Sgt. Dominguez deploying his pepper spray from a different angle (**Board Review 06**). In this video, Sgt. Dominguez is standing in front of a line of protesters and the recorder is standing behind the protesters. After pepper spraying the male protester with blonde hair in front of him, Sgt. Dominguez deploys his pepper spray to the right of the protester. The video does not capture who Sgt. Dominguez pepper sprays at that time. Sgt. Dominguez then pepper sprays the blonde male protester again and then pepper spray an individual standing to the left of the initial protester. The video does not capture this individual's physical appearance aside from them having brown hair. Sgt. Dominguez proceeds to pepper spray another individual, described above as a white female with blonde hair and wearing a black shirt, to the left of the initial protester as well as another female to the left of the female just described above. This female has long red hair. None of the protesters are captured pushing officers at any point. Sgt. Dominguez directly pepper sprays approximately five people over the course of 10 seconds.

Sgt. Dominguez did not prepare a TRI for this incident.

NYPD Patrol Guide Procedure 221-07 states that the use of Oleoresin Capsicum Pepper Spray (“OC spray”) may be used to gain control of persons who are actively resisting arrest or lawful custody or exhibiting active aggression, or to prevent individuals from physically injuring themselves, members of the service, or other persons. In an effort to gain voluntary compliance, member of the service should advise that the O.C. pepper spray will be used before applying such force, if feasible. The section also prohibits the use O.C. spray on subjects who passively resist and to avoid using O.C. spray indiscriminately over a large area for disorder control (members who are specifically trained in the use of O.C. pepper spray for disorder control may use O.C. pepper spray in accordance with their training, and within Department guideline, and as directed by supervisors). The same procedure defines active resistance as physically evasive movements to defeat a member of service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Passive resistance is defined as minimal physical actions to prevent a member from performing their lawful duty. For example, a subject failing to comply with a lawful command and stands motionless and/or a subject going limp when being taken into custody (**Board Review 14**).

The BWC footage captures a physical interaction between protesters, one of whom is holding an umbrella, and officers prior to Sgt. Dominguez deploying the pepper spray. The cellphone video shows Sgt. Dominguez deployed his pepper spray against approximately five protesters. Based on the BWC footage, it is unclear which officer is attempting to take which protester into custody, or if the officers are attempting to move the protesters back. The footage does not show protesters pushing Sgt. Dominguez or other officers as Sgt Dominguez alleged. Furthermore, the BWC footage also shows that at the time Sgt. Dominguez deployed the pepper spray, the protesters were standing in a line, walking backwards, passively resisting.

§ 87(2)(g)

§ 87(2)(g) The available video evidence does not show a protester attempting to intervene in the arrest of another protester and does not show protesters pushing officers. Instead, Sgt. Dominguez is depicted pepper spraying the blonde male protester who had his arms extended out to his sides. Sgt. Dominguez used his pepper spray a second time, against two other individuals, § 87(2)(g)

§ 87(2)(g) The video footage does not depict any of the protesters whom Sgt. Dominguez pepper sprayed pushing Sgt. Dominguez or other officers. Sgt. Dominguez deployed his pepper against the protesters as they were walking away from the officers. Video shows that Sgt. Dominguez pepper sprayed at least five individuals over the course of 10 seconds. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation (C) Force: Captain Chase Maneri used physical force against § 87(2)(b)

§ 87(2)(b) (**Board Review 10**) testified that she observed that a person who was pepper sprayed had lost their glasses and was having difficulty seeing. § 87(2)(b) walked towards the person because she wanted to move him away from the officers. Once she had a hold of the individual, § 87(2)(b) turned around. As she turned around, Capt. Maneri shoved § 87(2)(b) from behind to the ground, face-first. § 87(2)(b) immediately got up from the ground and continued walking

with the person she was helping. § 87(2)(b) identified Capt. Maneri as the officer that pushed her because she saw a photograph of Capt. Maneri on social media after the incident. Captain Maneri stood out to § 87(2)(b) because all the other officers in white shirts were men who were older (in their fifties or sixties), shorter, and bald. § 87(2)(b) provided the investigation with a screenshot of a social media post of Capt. Maneri (**Board Review 07**).

Capt. Maneri (**Board Review 12**) stated that he began his tour at a muster spot in Red Hook, Brooklyn, where he was assigned to go to the 84th Precinct stationhouse. When he arrived approximately 100-150 protesters were present. Capt. Maneri could not recall the specifics of what he did once he got to the location. Capt. Maneri could not recall how much time had passed from when he initially arrived at the 84th Precinct stationhouse to when the protesters started walking across the bridge. Once the protesters began to march across the Brooklyn Bridge, Capt. Maneri was towards the front of the police line that was following the protesters. “Hundreds of officers” were around Capt. Maneri at that time. Capt. Maneri’s goal was to keep the protesters moving across the bridge so that the bridge could be opened to traffic. Capt. Maneri did this by walking towards the protesters. Capt. Maneri did not recall if he issued the protesters any instructions to move back. The protesters would frequently stop and then continue walking as they crossed the bridge. Capt. Maneri could not recall if there were any instructions given to arrest protesters, although he believed three or four arrests were made on the bridge that night. Capt. Maneri could not recall if he watched any arrests being made or if he assisted in any of the arrests, nor did he recall if protesters attempted to interfere with any of the arrests. Capt. Maneri did not recall pushing § 87(2)(b)

Sgt. Dominguez’s BWC footage, from 14:21 to 14:52, shows Capt. Maneri pushing § 87(2)(b) (**Board Review 02**). From 14:21 to 14:45, the footage captures Sgt. Dominguez pepper spraying the protesters, as discussed above. At 14:45, § 87(2)(b) who has brown hair worn in a ponytail and is wearing a grey long-sleeved jean jacket, approaches a platinum blonde male protester whose hair is in a ponytail and is wearing a black t-shirt. The protester’s eyes are closed, and his face is in his hands. § 87(2)(b) grabs onto the protester and turns away from the officers. At 14:48, Capt. Maneri enters the frame suddenly from the left and pushes § 87(2)(b). It is unclear where or how § 87(2)(b) falls.

PO Healy’s BWC footage, from 14:17 to 14:55, captures this portion of the incident from a different angle (**Board Review 03**). At 14:18, approximately five protesters walk backwards away from the officers with their arms interlocked. One of the protesters has an umbrella open and in front of them. At 14:27, an unidentified individual wearing a green jacket briefly enters the frame on the left side. Simultaneously, an officer in a navy “NYPD” jacket enters the frame from the right side of the screen and attempts to take this individual to the ground. A physical struggle ensues between the officers and protesters. At 14:28, PO Healy says, “Get that person,” although it is unclear who he is referring to. At 14:31, an officer holds his bicycle up at chest level and pushes it into the protesters as they continue to walk backwards. At 14:50, Sgt. Dominguez is captured deploying his pepper spray against protesters who are walking backwards on the right side of the frame. At 14:51, Capt. Maneri, the only white shirted officer in the frame, approaches the group of protesters Sgt. Dominguez just pepper sprayed. At 14:52, § 87(2)(b) lunges forward out of the crowd of protesters who had just been pepper sprayed and reaches outward. At 14:53, Capt. Maneri pushes § 87(2)(b) from behind and then steps back.

The cellphone video provided by § 87(2)(b) to the investigation captures Capt. Maneri pushing § 87(2)(b) from a third angle (**Board Review 06**). At 00:04, Sgt. Dominguez deploys his pepper spray against approximately five protesters. At 00:09, Capt. Maneri enters the frame from the right side and pushes § 87(2)(b) from behind.

During his CCRB interview, Capt. Maneri was shown Sgt. Dominguez's BWC footage two separate times, from 14:21 to 14:52, which captured Capt. Maneri pushing § 87(2)(b) (Board Reviews 12, 02). This footage shows Sgt. Dominguez deploying his pepper spray and Capt. Maneri entering the screen from the left side of the frame at 14:48. Capt. Maneri's back is to the camera as he subsequently pushes § 87(2)(b). After reviewing the footage the first time, Capt. Maneri stated, "This was the entire night. Right here. This is what was going on the whole entire bridge." Capt. Maneri identified himself as the officer pictured on the right side of the screen, at 14:52, but did not see himself pushing § 87(2)(b). After reviewing the footage a second time, Capt. Maneri stated that it looked like an arrest was being made on the ground off camera near the right side of the frame and that officers were trying to get the crowd back while the arrest was being made. Capt. Maneri stated that he observed himself make a motion towards the crowd, but that he could not see who was behind that motion.

Capt. Maneri was also shown the cellphone video provided by § 87(2)(b) to the investigation three separate times (Board Reviews 12, 06). This footage captured Capt. Maneri pushing § 87(2)(b) from behind as well Sgt. Dominguez deploying his pepper spray. Reviewing the video did not refresh Capt. Maneri's recollection of any actions he took on scene. Capt. Maneri did not observe himself push § 87(2)(b) at any point in the video. After reviewing the cellphone video the second and third time, Capt. Maneri maintained that he did not observe himself push § 87(2)(b) at any point.

Capt. Maneri did not prepare a TRI for this incident.

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise to protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. The following factors, among others, must be considered when determining whether the use of force is proper; the nature and severity of the crime/circumstances; actions taken by the subject; the immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; the number of subjects in comparison to the number of officers; the size, age, and condition of the subject in comparison to the officers; the subject's violent history (if known); and the presence of a hostile crowd or agitators (Board Review 15).

The BWC footage and the cellphone video both show Capt. Maneri pushing § 87(2)(b) as she attempted to help a protester who had just been pepper sprayed by Sgt. Dominguez. It is undisputed that the protesters were backing away from police officers at this time and had just been subjected to a mass pepper spraying, as discussed above in Allegation B. § 87(2)(b) moved towards a protester who she perceived to be in need of assistance and did not make any motion towards Capt. Maneri or any other police officer. § 87(2)(b) § 87(2)(g) was surrounded and outnumbered by police officers. § 87(2)(g)

It is therefore recommended that Allegation C be closed as Substantiated.

Allegation (D) Abuse of Authority: Police Officer DENNIS GANNON refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) (Board Review 10) stated that as she continued to walk backwards with other protesters towards Manhattan, she observed approximately 10 SRG officers standing on the side of the bridge in a line. § 87(2)(b) recorded obtaining all of the officers' shield numbers except for

one officer, identified by the investigation as PO Gannon, who allegedly refused to show his shield number. § 87(2)(b) stood approximately four feet in front of PO Gannon and said, “Can I see your badge number?” PO Gannon did not do or say anything in response, and he held onto his jacket such that it covered his shield number. § 87(2)(b) stated that PO Gannon was not looking at her at the time she made the request, however, she knew he heard her because she spoke loudly.

PO Gannon’s BWC footage, which is 49:38 minutes in length, captures this portion of the incident (**Board Review 04**). At 03:02, § 87(2)(b) enters the frame from the left side while holding her cellphone at chest level. At 03:03, § 87(2)(b) walks slowly past PO Gannon, stops briefly, and takes a step back. § 87(2)(b) looks at PO Gannon and says, “Badge number.” PO Gannon does not respond. § 87(2)(b) waves her water bottle to get PO Gannon’s attention and says, “Hey, your badge!” At 03:09, § 87(2)(b) nods her head and proceeds to walk down the line of officers while filming.

§ 87(2)(b) provided a cellphone video to the investigation, which is 00:54 in length, that captures this portion of the incident from her perspective (**Board Review 08**). The video begins from the perspective of § 87(2)(b) who is walking backwards behind protesters who are facing a line of officers. At 00:12, § 87(2)(b) pans her camera to the river side of the bridge where a line of officers are standing. At 00:16, § 87(2)(b) zooms in on the first officer’s name plate and shield number which reads, “Ippolito 6866.” Simultaneously, “PO Ippolito” points to his name plate and says, “Make sure you get it.” § 87(2)(b) zooms in on the name plate and shield numbers of the following officers who stand in a line next to PO Ippolito: “Price 5590,” “Callender 28550,” “Gross 21147,” “Krasniqi 1161,” “Haller 31923,” and “Rosero 3826.” At 00:31, § 87(2)(b) angles her camera towards the ground while she simultaneously says, “Badge number...Hey your badge!” The officer whom § 87(2)(b) is speaking to is not captured and no response from the officer is heard. At 00:36, § 87(2)(b) continues to film the rest of the following officers who stood in the line: “Ham 11722,” “Lopez 16092,” “Sgt. Rodriguez 1452,” Olivares 16326,” “Sgt. Vega 2783” and “Lt. Vasquez.”

On June 10, 2022, PO Gannon was interviewed by the CCRB (**Board Review 13**). PO Gannon testified that he was in a police vehicle with other SRG officers that arrived ahead of the protest on the Manhattan bound side of the bridge. The vehicle pulled to the side of the road so the protesters and officers who were following them could pass. The protest was “loud” and some of the protesters had drums, megaphones, and music playing. PO Gannon stated that the crowd was mostly orderly except for a few people that were “yelling and screaming and seemed agitated.” PO Gannon remained on the side of the road until the protesters and officers passed by, at which point PO Gannon followed behind the officers. PO Gannon did not recall the incident involving § 87(2)(b) despite being provided with a description of it as well as a physical description of § 87(2)(b). PO Gannon stated that protesters “often video tape them as they walk by [them]” and that it was not an unusual occurrence. PO Gannon denied refusing to provide his shield number to § 87(2)(b) by obscuring it with his jacket. PO Gannon was not wearing anything over his uniform and stated that his shield number is located directly above his name plate. PO Gannon recalled a civilian pointing towards the direction of the line of officers he was standing with and telling an officer to put their mask on. PO Gannon did not know if this individual was talking to him or another officer. PO Gannon was provided with the last names of the officers he stood next to (based off of § 87(2)(b) cellphone vide), but he did not recognize any of them. During the interview, PO Gannon was shown his BWC footage from 02:55 to 03:14, which captured § 87(2)(b) holding her phone in front of her as she walks past the line of officers (**Board Reviews 04**). § 87(2)(b) stops briefly in front of PO Gannon, asks for his shield number twice, nods, and continues to walk down the line of officers while recording. Reviewing the footage did not refresh PO Gannon’s memory of the incident and he maintained that he did not refuse to provide his shield

number to § 87(2)(b) at any point nor did he observe any other officer do so.

PO Gannon's BWC captured § 87(2)(b) asking for his shield number twice before she continued to walk past the rest of the officers that stood with him in the line. § 87(2)(b) cellphone video is consistent with PO Gannon's BWC recording, except that it shows her capturing the specific names and shield numbers of the officers, excluding PO Gannon.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Substantiated**.

Allegation (E) Force: Police Officer GILBERTO RODRIGUEZ used physical force against

§ 87(2)(b)

§ 87(2)(b) (**Board Review 10**) testified that she and other protesters walked to the sidewalk lining City Hall once they exited the Brooklyn Bridge on the Manhattan side. § 87(2)(b) and the protesters walked backwards from the street onto the sidewalk while facing the officers so that their backs were not turned to them. Several cars were parked in front of the sidewalk and one protester, whom § 87(2)(b) identified as § 87(2)(b) was pushed by an officer, identified by the investigation as PO Rodriguez, with a bicycle into a car as she attempted to maneuver around the car to get to the sidewalk. § 87(2)(b) did not witness this interaction but learned of it later from § 87(2)(b) sustained bruising to her collar bone as a result.

§ 87(2)(b) did not provide the investigation with § 87(2)(b) contact information. The CCRB conducted a search of the CTS database and was able to obtain § 87(2)(b) contact information. The CCRB attempted to contact § 87(2)(b) to obtain a statement, however, all attempts were unsuccessful (**Board Reviews 16-18**). On May 14, 2021, § 87(2)(b) informed the investigation that § 87(2)(b) told her she was not interested in providing a statement to the investigation. As a result, § 87(2)(b) was not interviewed by the CCRB (**Board Review 19**).

PO Rodriguez's BWC, from 58:41 to 59:44, most clearly captures this portion of the incident (**Board Review 05**). At 58:44, PO Rodriguez is captured standing in front of a group of protesters with his bicycle in his hands. The protesters are standing in the street with their backs to the sidewalk which is approximately eight feet behind them. Two cars are parked behind the group of protesters with a small amount of open space between them. At 58:46, PO Rodriguez holds his bicycle up and says, "Move back, move back come on." The protesters take small steps backwards while remaining in the street. At 58:50, PO Rodriguez walks towards the protesters with his bicycle is and repeatedly yells, "Move back! Move back!" At 58:54, PO Rodriguez makes a rapid forward motion with his bicycle towards the crowd of protesters while ordering them to move back. § 87(2)(b) a white female with long brown hair, a black mask, and a black sweater, is standing on the left side of the frame. At 58:55, § 87(2)(b) raises her left arm towards her right collar bone area while holding her phone in her right hand. § 87(2)(b) immediately retreats into the crowd of protesters, who are now standing on the sidewalk. At 59:26, § 87(2)(b) enters the frame on the left side, lowers her ask while continuing to record, and says, "You shoved your fucking bike in on my throat so fucking hard you piece of shit. You feel good about that? You feel fucking good about that? You feel tough? Like a real fucking man? Rodriguez. Piece of shit." PO Rodriguez does not

respond and remains standing in front of the protesters. The footage does not capture the specific physical interaction between § 87(2)(b) and PO Rodriguez.

§ 87(2)(b) provided a cellphone video taken by § 87(2)(b) (**Board Review 09**). The video begins from the perspective of § 87(2)(b) facing officers while walking. Officers can be heard saying, “Move back! Move back!” At 00:09, § 87(2)(b) turns around and angles her camera towards the street. At 00:14, § 87(2)(b) angles her cellphone video upward and PO Rodriguez, wearing a neon vest and helmet, lift his bicycle in an upward motion. At 00:16, § 87(2)(b) steps back behind a group of protesters and angles her phone down towards the street. An unidentified individual in the background can be heard saying, “We’re all back up, we’re all back up.” At 00:23, PO Rodriguez stands in front of § 87(2)(b) with his bicycle in his hands. PO Rodriguez bounces his bicycle on the ground and says, “Move back.” At 00:26, § 87(2)(b) says, “We’re back.” An unidentified female in the background can be heard saying, “There is a car behind us.” At 00:29, § 87(2)(b) walks forwards towards PO Rodriguez and other officers who are standing next to him while saying, “There’s a car behind us.” PO Rodriguez walks towards the protesters while yelling, “Move back, move back.” § 87(2)(b) says, “We are, we are moving...” At 00:36, § 87(2)(b) camera moves rapidly as she simultaneously says, “Ow.” § 87(2)(b) camera remains blurry until she reaches at the sidewalk at 00:41. At 00:42, § 87(2)(b) camera is facing the sidewalk as she says, “Fuck.” An unidentified male voice asks § 87(2)(b) if she is okay. § 87(2)(b) who sounds as though she is crying, responds, “Yeah.”

On June 1, 2022, SPA Lai of the Military Extended Leave Desk (MELD) confirmed that PO Rodriguez was on military leave until January of 2023. Therefore, the CCRB was unable to interview PO Rodriguez (**Board Review 19**). A request for PO Rodriguez’s exact departure and return dates was submitted and will be added to the case file upon receipt.

§ 87(2)(g) it is recommended that **Allegation E** be closed as **Miscellaneous- Subject on Long Term Leave**.

§ 87(2)(g), § 87(4-b)

Allegation (H) Untruthful Statement: Captain Chase Maneri provided a false official

statement to the CCRB.

The cellphone video provided to the investigation (**Board Review 06**), depicts Capt. Maneri pushing § 87(2)(b) from behind as she attempts to assist a protester that had been pepper sprayed. In his May 12, 2022, statement to the CCRB, Capt. Maneri refused to acknowledge that he pushed § 87(2)(b) at any point (**Board Review 12**). Capt. Maneri continued his denial despite being presented with the cellphone video that documented him pushing § 87(2)(b).

NYPD Administrative Guide 304-10 defines a false official statement as “an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” The Administrative Guide defines a material fact as “a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail.” The Administrative Guide states that intentionally making a false official statement is considered prohibited conduct (**Board Review 22**).

As discussed under Allegation C, Capt. Maneri denied pushing § 87(2)(b) at any point.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that

Allegation H be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Sgt. Dominguez has been a member of service for 16 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Capt. Maneri has been a member of service for 14 years and has been a subject in nine CCRB complaints and 21 allegations, none of which were substantiated. § 87(2)(g)
- PO Gannon has been a member of service for 13 years and has been a subject in two CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)

- PO Rodriguez has been a member of service for nine years and has been named a subject in eight CCRB complaints and 18 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- Due to the mediation moratorium, mediation was not offered to § 87(2)(b)
- As of November 5, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 24**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 3 _____

Investigator:	_____ Charis Jones Signature	_____ Inv. Charis Jones Print Title & Name	_____ 07/01/2022 Date
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Squad Leader:	_____ Tessa Yesselman Signature	_____ IM Tessa Yesselman Print Title & Name	_____ 07/16/2022 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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